

the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

(2) If the notice is served on the client by electronic service under Code of Civil Procedure section 1010.6 and rule 2.251, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address.

As used in this rule, "current" means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current. If the service is by mail, Code of Civil Procedure section 1011(b) applies.

CRC 3.1362(d).

The Declaration of Yue Zhao notes that the last known address “was verified via PeopleMap on 2/20/26.” No further information is provided regarding any attempts made to confirm the address. February 20, 2026 is more than 30 days ago.

Counsel has not complied with the notice requirements set forth in CRC 3.1362. The motion is **DENIED** without prejudice. The proposed Order provided cannot be modified to reflect the Court’s ruling. Delight Food’s counsel is to prepare the Order.

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**9:00 a.m. – Review Hearings**

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**COGLITORE HOLDINGS LLC VS. BUNDY**

**CASE NUMBER: 26CVG-00180**

This matter is on calendar for status of accounting. The Judgment of Abandonment by Default (Salvage) was entered on March 4, 2026 ordered disposal of the mobile home. The Inventory was filed on April 6, 2026. The matter was last on calendar on June 8, 2026 and continued to today to allow time for the Accounting, which has not been filed. No status report was filed. **An appearance is necessary on today’s calendar.**

**JACKSON VS. COLLINS, ET AL.**

**CASE NUMBER: 24CV-0206492**

This matter is on calendar for review regarding status of counsel. The Court notes that while Plaintiff’s counsel filed Notice of Entry of Order for the Motion to be Relieved, the attached Order is an unfiled and unsigned copy of the proposed Order. Plaintiff must be served with a copy of the actual Order filed in this matter. Plaintiff’s counsel remains as counsel of record until Plaintiff is served with the Order executed on July 27, 2026 and Notice of Entry of Order is filed. Additionally, due to service issues, Defendant/Cross-Complainant’s Motion for Leave to file Amended Cross-Complaint was denied on this morning’s Law & Motion calendar. **An appearance is necessary on today’s calendar.**

**LOMELI, ET AL. VS. DELIGHT FOODS, ET AL.**

**CASE NUMBER: CVCV18-0191244**

This matter is on calendar for review regarding status of the case. The Court notes that the bankruptcy stay imposed based on the Delight Foods bankruptcy was lifted on July 6, 2026. The Court notes that Defendants Steven Ahrens and Rosa Linda Ahrens recently filed a Notice of Bankruptcy, however, the date of the file stamp on the Voluntary Petition is August 23, 2024. The Court will need an update regarding the Ahrens bankruptcy. The Court notes that final approval of the class action settlement was granted on August 12, 2024 and a judgment has been entered. No party has provided a status as to how or if the judgment was affected by the bankruptcy proceedings. **An appearance by counsel for all parties is necessary on today’s calendar. The Court expects**

**the parties to meet and confer prior to the hearing regarding the status of the judgment in this matter. Failure to appear will result in the issuance of an Order to Show Cause Re: Sanctions.**

**CHATHA, ET AL. VS. TORNADO ALLEY TURBO, INC., ET AL.**

**CASE NUMBER: 22CV-0200483**

This matter is on calendar for status of dismissal. While Plaintiff filed a Request for Dismissal that was processed on August 11, 2026, there are still Cross-Complaints that have not been dismissed. The Cross-Complaints filed by 3 JRM Development, Inc, et al and Benton Air Center, Inc., et al must be dismissed before the Court can close the file. The matter is continued to **Monday, December 7, 2026, at 9:00 a.m. in Department 63** for status of dismissal. The Court expects the parties to file Requests for Dismissal. If the Cross-Complaints are not dismissed prior to December 7, 2026, the Court intends to dismiss them without prejudice pursuant to CRC 3.1385 because the Notice of Conditinal Settlement filed March 24, 2025 indicates that the matter would be dismissed no later than May 23, 2025 and no good cause has been shown. Any good cause will need to be presented at or before the December 7, 2026 review hearing. **No appearance is necessary on today's calendar.**

**SUBWAY REAL ESTATE, LLC VS. ROSARIO SABET, ET AL.**

**CASE NUMBER: 23CV-0202926**

This matter is on calendar for review regarding status of responsive pleading or default. The Court notes that Plaintiff filed an Answer to the Cross-Complaint on August 10, 2026. The matter is now at issue and ready to be set for trial. The Court notes that the Complaint it this matter was filed on August 9, 2023. The Court finds this matter to be exempt from plan designation and intends to set the matter for trial no later than April 27, 2026. No jury fees have been posted. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. The Court notes that Plaintiff's status statement requests an order regarding whether discover remains open. The parties are also invited to meet and confer regarding that issue. **An appearance is necessary on today's calendar.**

**WARD, ET AL. VS. LEVINDOFSKE, ET AL.**

**CASE NUMBER: 25CV-0207586**

This matter is on calendar for trial setting. The matter is now at issue as Defendants filed their answer to Plaintiff Jeff Ward's first amended complaint on September 4, 2026. The Court intends on setting the matter for trial. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

**YATES VS. GENERAL MOTORS, LLC**

**CASE NUMBER: 24CV-0206692**

This matter is on calendar for review regarding status of dismissal. The matter has not been dismissed despite the Court ordering attorney fees and costs on July 15, 2026. The parties were ordered to file status statements no less than five court days prior to today's hearing and have not done so. **An appearance is necessary on today's calendar.**